

1	Sunstate Equipment Co., LLC vs. Treni Cole Builders, Inc. 30-2025-01451346	<u>Case Management Conference</u> The Case Management Conference is CONTINUED to October 15, 2026, at 9:00 a.m. in Department N15. <u>Motion to Set Aside Entry of Default</u> Cross-Defendant Jonathan Mejia’s Motion to Set Aside Default Judgment is CONTINUED to August 4, 2026 at 9:00 a.m. in Department N15. Cross-Defendant Jonathan Mejia is ORDERED to file and serve supplemental motion papers that 1) include a proposed answer or other pleading responsive to the Cross-Complaint, and/or 2) an affidavit or declaration stating under oath that Cross-Defendant Jonathan Mejia lacked actual notice of the Summons and Cross-Complaint and that any lack of notice was not caused by his avoidance of service or inexcusable neglect, no later than July 10, 2026. Cross-Defendant Jonathan Mejia is ORDERED to file a proof of service showing that he has served all supplemental motion papers on all parties that have appeared in this action, including Defendant and Cross-Complainant Treni Cole Builders, Inc. or Plaintiffs T.H. and C.K. The parties shall file and serve any opposition or reply papers pursuant to Civil Procedure Code section 1005(b). <u>Pending Motion</u> Cross-Defendant Jonathan Mejia moves to set aside the default entered against him on February 17, 2026. (See ROA #56.) <u>Standard to Set Aside Entry of Default</u> The Civil Procedure Code grants the court discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).)
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		"Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) "Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted." (<i>Ibid.</i>) Nonetheless, the requirement that the judgment or order have been entered through "inadvertence, surprise, excusable neglect, or mistake" is "not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category." (<i>In re Wolper's Estate</i> (1956) 146 Cal.App.2d 249, 251.) As the Court of Appeal has explained: It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. (<i>Hewins v. Walbeck</i> (1943) 60 Cal.App.2d 603, 609-610.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In addition, an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, <i>otherwise the application shall not be granted . . .</i>" (Code Civ. Proc., § 473, subd. (b), <i>italics added.</i>)
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		Civil Procedure Code section 473.5 provides another basis for relief from default. That provision states: When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) A motion brought pursuant to Section 473.5 also must be "accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect" as well as "a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).) To the extent that Cross-Defendant seeks relief from default pursuant to Section 473(b), Cross-Defendant failed to attach a copy of a proposed answer or other pleading responsive to the Cross-Complaint. To the extent that Cross-Defendant seeks relief from default pursuant to Section 473.5, Cross-Defendant only states in his declaration that there was "improper service of the summons." (See Mot. to Set Aside Def. J., Decl.) Cross-Defendant does not show that he actually lacked notice of the Summons and Cross-Complaint or that any lack of notice was not caused by his avoidance of service or inexcusable neglect. Therefore, the court will continue this hearing to allow Cross-Defendant to supplement the motion papers to cure one or both of these defects. In addition, Cross-Defendant did not file a proof of service showing that he served this motion on Defendant and Cross-Complainant Treni Cole Builders, Inc. or Plaintiffs T.H. and C.K.
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2	Pipkin vs. Pipkin 30-2024-01430329	<u>Demurrer</u> Defendant Patricia Pipkin's to Aaron Pipkin's First Amended Complaint is SUSTAINED with 15 days leave to amend as to the 1st through 4th Causes of Action. <u>Pending Motion</u> Defendant Patricia Pipkin demurs to the entire First Amended Complaint for Damages (FAC) and to the 1st through 4th Causes of Action of the FAC filed by Plaintiff Aaron Pipkin. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters